

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2016-6112

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF THE APPLICATION FOR LICENSURE TO PRACTICE
PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF SARAH BALKANY,
LPC (Pending),

Applicant.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Sarah Balkany ("Applicant") as follows:

1. By application dated September 4, 2016, Applicant applied for licensure to practice as a Licensed Professional Counselor ("LPC") in the State of Colorado ("Application").
2. The Board has jurisdiction over Applicant, the Application, and the subject matter of this Stipulation and Final Agency Order ("Order").
3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of the Application without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2016-6112. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Applicant, as of the effective date of this Order.
4. Applicant admits the following:
 - a. On or about September 4, 2016, Applicant applied for licensure as a LPC in the State of Colorado, and her licensure request is currently pending.
 - b. On her Application, Applicant answered "yes" to question 6 which states: "Have you ever received a deferred judgment or been convicted or been convicted of or pled nolo contendere to a violation of any federal, state, or local law relating to the manufacture, distribution or dispensing of a controlled substance, or relating to drug abuse, including alcohol (DUI/DWI/DWAI/OWI)?"
 - c. On or about January 18, 2012, Applicant pled guilty to DWAI, a misdemeanor, in Case No. 2011T001156, in County Court, City & County of

Broomfield, Colorado. She was sentenced to two (2) days in jail, which was suspended, and one (1) year of supervised probation.

d. On or about January 16, 2013, Applicant pled guilty to DWAI, a misdemeanor, in Case No. 2011T001154, in County Court, Summit County, Colorado. She received a deferred sentence that included twenty four (24) months of supervised probation and community service. On April 6, 2015, Applicant completed the terms of the deferred sentence, and the case was dismissed.

e. On or about March 9, 2016, Applicant pled guilty to DUI, a misdemeanor, in Case No. 2014T001027, in County Court, Summit County, Colorado. She received a deferred sentence that included four (4) years of supervised probation and community service.

f. Applicant admitted to three DUI/DWAI offenses.

g. On or around March 8, 2017, Applicant submitted to an evaluation, and the evaluator concluded that Applicant is not safe to practice professional counseling without treatment and monitoring.

5. By virtue of the facts admitted in paragraph 4 above, Applicant admits and the Board finds that the above conduct is a violation of §12-43-222(1)(e), C.R.S.

6. By virtue of the admissions contained in paragraph 4, Applicant specifically agrees to accept a license subject to the terms and conditions outlined below. Applicant further agrees that the Board is authorized by §§12-43-212 and 12-43-224(3)(c), C.R.S., to grant Applicant a license. Applicant consents to the following limitations to her license within the meaning of §24-4-104(11), C.R.S. Applicant acknowledges that by accepting this license in lieu of a formal hearing, Applicant waives all remedies outlined in §§12-43-212 and 24-4-104(9), C.R.S.

PROBATION

7. Applicant's license to practice professional counseling in the State of Colorado is hereby placed on probation to run concurrently with her criminal probation in Case No. 2014T001027, commencing from the effective date of this Order. During the probationary period, Applicant shall be bound by the terms and restrictions set forth in this Order.

8. The period of probation is tolled during any time that Applicant is not practicing in this state, and such period of probation shall resume at such time as Applicant resumes practicing in the State of Colorado in accordance with this Order.

9. Credit toward the period of probation will be given only for the period of time during which Applicant is practicing as a LPC in Colorado and is in full compliance with all terms of this Order.

10. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, and has provided evidence of satisfactory completion of her criminal probation in Case No. 2014T001027, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that she has satisfied all terms and conditions of probation.

TERMS AND CONDITIONS

11. Applicant will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

12. All expenses incurred or associated with any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Board.

13. In the event Applicant relocates at any time during the probationary period, Applicant shall notify the Board of the change of address within 30 days of the effective date of such change.

14. Applicant is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Applicant also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

15. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

16. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

17. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

18. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

19. Applicant shall obey all state and federal laws while this Order is in effect.

20. This Order constitutes the entire agreement between Applicant and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

21. This Order shall become effective upon (a) mailing by first-class mail to Applicant at Applicant's address of record with the Board, or (b) service by electronic means on Applicant at Applicant's electronic address of record with the Board. Applicant hereby consents to service by electronic means if Applicant has an electronic address on file with the Board.

22. This Order shall be admissible as evidence at any hearing held before the Board.

23. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

APPLICANT



SARAH BALKANY
LPC NO. (Pending)

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS



DARCIE MAGNUSON
Program Director

Effective this 11th day of

July, 2017.